

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ADAM Q FAIRIRIS,

Petitioner

VS.

SEAN CLINTON NOLAN,

Respondent

) Case Number: FDV-25-818687

) Hearing Date: June 11, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: MARTIN TRIANO

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Adam Fairris (age 35) and Respondent Sean Nolan (age 55). Respondent is Petitioner's adoptive father. Petitioner is represented by attorney Crisostomo Ibarra. Respondent is represented by attorney David Simon.
- 2) On 12/19/2025, pursuant to a stipulated agreement of the parties, this Court entered mutual Domestic Violence Restraining Orders protecting each party from the other. The restraining orders expire on 12/19/2028. The restraining order entered for Petitioner's protection contains an order requiring Respondent to pay Petitioner \$10,000 for attorney's fees and costs no later than 1/8/2026.
- 3) On 2/9/2026, Petitioner filed a declaration stating he had not yet received the \$10,000 payment despite multiple communications with Respondent's attorney (who stated there were issues with the ACH transfer).
- 4) On 3/13/2026, Petitioner filed a declaration stating that he accrued \$198.23 in interest and fees as a result of Respondent's late payment. Petitioner also states that as a result of Respondent's

1 failure to pay the \$10,000, Petitioner believed the DVRO was being ignored which led
2 Petitioner's mental health to worsen. Petitioner states that as a result he was unable to work
3 during the month of February, resulting in lost wages, and he had to attend four therapy sessions,
4 all of which cost him \$2,548.85. Petitioner states he is therefore owed a total of \$2,746.08.

5 5) On for hearing is Petitioner's Order to Show Cause and Affidavit for Contempt filed 4/10/2026.
6 Petitioner states Respondent violated the restraining order, but there is no accompanying
7 declaration identifying the specific conduct which constituted the alleged violation. Petitioner
8 also states that he is owed \$2,746.08 in "incurred interest," but there is no accompanying
9 declaration explaining what this figure is based on.

10 6) The Court notes that Petitioner filed a second Order to Show Cause Re: Contempt on 4/17/2026,
11 which the Court declined to issue. That filing included various attachments explaining the basis
12 for Petitioner's claims. Those attachments were not included with the 4/10/2026 Order to Show
13 Cause Re: Contempt that was set for hearing on 6/11/2026.

14 7) On 5/27/2026, Respondent filed a Responsive Declaration asking the Court to deny Petitioner's
15 requested orders and require Petitioner to pay Respondent's attorney's fees and costs responding
16 to the Order to Show Cause Re: Contempt. Respondent states that Petitioner's Order to Show
17 Cause and Affidavit for Contempt filed 4/10/2026 is missing attachments it references internally
18 and that it is unclear what order Petitioner is stating Respondent has violated because he has
19 never been ordered to pay Petitioner \$2,746.08. Respondent states he has already paid the
20 \$10,000 due to Petitioner and that the delay in payment stemmed from the fact that Respondent
21 received the final restraining order only one day before payment was due, lacked immediate
22 access to the funds, and encountered difficulties obtaining payment instructions while complying
23 with the restraining order's no-contact requirement.

24 8) On 6/4/2026, Petitioner filed a Reply Declaration stating that Respondent was ultimately served
25 with a correct copy of the Order to Show Cause Re: Contempt containing the attachments.
26 Petitioner clarifies, "The incurred interest in this order is from violation of Section 14 of the DV-
27 130" (requiring Respondent to pay Petitioner \$10,000 for attorney's fees and costs no later than
28 1/8/2026). Petitioner also states that the memo of the \$10,000 check mailed to him by Respondent
29 contains the words "prodigal inheritance" which violates the restraining orders' no-contact order.

1 Petitioner asks the Court to deny Respondent's request for attorney's fees, states that his Order to
2 Show Cause Re: Contempt is not a frivolous filing, and states he is entitled to seek enforcement
3 of the restraining order without being penalized for doing so.

4 **B. Findings and Order**

- 5 1) Because the Order to Show Cause Re: Contempt filed 4/10/2026 is missing various declarations
6 and attachments, the hearing on Petitioner's Order to Show Cause Re: Contempt is hereby
7 continued to **Tuesday, 8/18/2026 at 9:00 AM in Dept. 404**. Petitioner is ordered to file and serve
8 (and file a Proof of Service evidencing service of) an Amended Order to Show Cause Re:
9 Contempt which contains the requisite attachments.
- 10 2) Petitioner's attorney shall prepare the Findings and Order After Hearing.
- 11 3) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
12 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
13 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
14 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
15 proposed order after hearing directly to the court. Failure to submit the order after hearing within
16 10 days may allow the other party to prepare a proposed order and submit it to the court in
17 accordance with CA Rules of Court, Rule 5.125(d).